



This **Non-Disclosure Agreement** (the “Agreement”) is entered into between **ToosPoint Consulting** and **Simplified Group BPO LLC** (each a “Party”), who may disclose confidential information to one another in connection with a contemplated or ongoing business relationship.

## 1. Confidential Information

“**Confidential Information**” means any non-public information disclosed by one Party (“Disclosing Party”) to the other (“Receiving Party”), orally, in writing, or electronically, that is marked confidential or reasonably understood to be so, including business plans, financials, pricing, client/vendor/interpreter lists and payout structures, trade secrets, methodologies, and proprietary know-how.

## 2. Obligations

Each Receiving Party shall (a) hold Confidential Information in strict confidence using at least a reasonable standard of care; (b) use it solely to evaluate or conduct the business relationship; (c) limit access to personnel with a need to know who are bound by equivalent confidentiality obligations; and (d) not disclose, copy, reverse-engineer, or distribute it to any third party without the Disclosing Party’s prior written consent.

## 3. Exclusions

Obligations do not apply to information that is (a) already rightfully known without confidentiality obligation, (b) publicly available through no breach hereof, (c) rightfully received from a third party without restriction, or (d) independently developed without reference to the Disclosing Party’s Confidential Information. Legally compelled disclosures are permitted with prompt written notice where lawful.

## 4. Non-Circumvention

Neither Party shall use the other’s Confidential Information to solicit or transact directly with any client, prospect, vendor, or interpreter introduced by the other Party for the purpose of circumventing that Party, during the term and for **twelve (12) months** thereafter.

## 5. Term, Return & Remedies

This Agreement is effective for **two (2) years**; confidentiality obligations survive for **three (3) years** from disclosure. Upon request or termination, the Receiving Party shall promptly return or destroy all Confidential Information. All Confidential Information remains the sole property of the Disclosing Party; no license is granted. Each Party acknowledges that breach may cause irreparable harm entitling the Disclosing Party to **injunctive relief** in addition to other remedies. Governed by applicable laws as mutually agreed; may be executed in counterparts, including by electronic signature.

**IN WITNESS WHEREOF** the Parties have executed this Agreement as of the Effective Date.

ToosPoint Consulting

Simplified Group BPO LLC

\_\_\_\_\_  
Authorized Signature · Date

\_\_\_\_\_  
Authorized Signature · Date

\_\_\_\_\_  
Printed Name · Title

\_\_\_\_\_  
Printed Name · Title